

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #04	CCRB Case #: 201411360	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 11/07/2014 1:00 PM	Location of Incident: 625 East 135th Street	18 Mo. SOL 5/7/2016	Precinct: 40		
Date/Time CV Reported Fri, 11/07/2014 2:10 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/07/2014 2:10 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Adrian Ramos	27579	940609	040 PCT
2. SGT Steven Degree	02179	943141	040 PCT
3. An officer			040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Dillon	10147	933541	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Steven Degree	Abuse: Sgt. Steven Degree threatened to arrest § 87(2)(b)	A . Unsubstantiated
B . POM Adrian Ramos	Abuse: PO Adrian Ramos threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . An officer	Abuse: An officer threatened to arrest § 87(2)(b)	C . Officer(s) Unidentified

Case Summary

On November 7, 2014, § 87(2)(b) filed this complaint with the CCRB via telephone.

At approximately 1:00 p.m. on November 7, 2014, § 87(2)(b) double-parked his car in front of 625 East 135th Street, in the Bronx. He then ran into a nearby restroom. When he came out, he found two officers, Sgt. Steven Degree and PO Adrian Ramos of the 40th Precinct, standing by his car. PO Ramos was writing him a parking summons. After § 87(2)(b) identified himself as the owner of the vehicle, the officers asked to see his license and registration. While § 87(2)(b) pointed out that the officers did not need those documents to issue a parking summons, the officers again asked for his license and registration. § 87(2)(b) moved to produce the documents, but before he had a chance, both officers threatened to arrest him for failing to comply with their order (**Allegations A and B**). A short time later, a third officer, whom the investigation was unable to identify, arrived at the location. This officer approached § 87(2)(b) and told him that he should be “locked up” (**Allegation C**). This officer did not specify why. § 87(2)(b) was stopped for about half an hour before PO Ramos gave him the summons. § 87(2)(b) then drove away.

Mediation, Civil and Criminal Histories

§ 87(2)(b) accepted mediation, and the case was referred to the ADR Unit on February 6, 2015. It was returned for investigation on February 26, 2015, § 87(2)(g)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
On February 18, 2015, a notice of claim request was sent to the Comptroller’s office regarding this incident and a separate complaint occurring on the same day that § 87(2)(b) also filed. It will be included in the case file upon receipt.

Civilian and Officer CCRB Histories

- This is § 87(2)(b) s second complaint with the CCRB. § 87(2)(b)
§ 87(2)(b)
- Sgt. Degree has been a member of the service for eight years, and there are three substantiated CCRB allegations against him. In case #201310243, stop, frisk and search allegations were substantiated against Sgt. Degree. He received instructions (Encl. 1A-B).
- PO Ramos has been a member of the service for nine years and there are two substantiated CCRB allegations against him. In case #201310243, stop and search allegations were substantiated against PO Ramos. He received instructions (Encl. 1C).

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation A – Abuse of Authority: Sgt. Steven Degree threatened to arrest § 87(2)(b)

Allegation B – Abuse of Authority: PO Adrian Ramos threatened to arrest § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on January 8, 2015 (Encl. 4A-C). § 87(2)(b) alleged that Sgt. Degree and PO Ramos asked him for his driver's license and vehicle registration after he identified himself as the owner of the double-parked car. He further alleged that before he had an opportunity to produce these documents, both officers told him that he would be arrested.

Sgt. Degree and PO Ramos were interviewed at the CCRB on March 6, 2015 (Encl. 5F-G, 6D-E). Both officers denied asking § 87(2)(b) for his identification, explaining that since parking summonses are filled out using the vehicle's information, the driver's information is not necessary. Both officers denied threatening to arrest § 87(2)(b) either for failing to produce identification, or for any other reason.

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C – Abuse of Authority: An officer threatened to arrest § 87(2)(b)

During his sworn statement, § 87(2)(b) identified the third officer who threatened to arrest him as a 6' white male whose name began with the letter "V." This officer arrived at the location by himself in a marked RMP. During a photo viewing session on February 4, 2015, § 87(2)(b) identified this officer as PO David Dillon, a 6'3" white male (Encl. 4D-P).

Both Sgt. Degree and PO Ramos denied that any other officers besides themselves were present during the incident. Both specifically denied seeing PO Dillon at that time. PO Dillon himself was interviewed at the CCRB on March 6, 2015 (Encl. 7C-D). He denied any knowledge of the incident. He stated that at the time of the incident, he was assigned to the SNEU team's marked prisoner van along with PO Edgar Clases and PO Anaritza Gonzalez. This is confirmed by his memo book (Encl. 7A-B). PO Dillon denied responding to any incidents before 2:15 p.m., when the team made its first arrest. He denied being involved in the issuance of any parking summonses before then, and denied threatening to arrest anybody.

§ 87(2)(g)

During his photo viewing, § 87(2)(b) was shown photographs of eight officers, including the other members of the SNEU team, as well as PO Erik Vecvargas and PO Jorge Velez, the only two officers from the 40th Precinct whose names begin with the letter "V." He did not identify any of them as the third officer. None of these officers matched § 87(2)(b)'s description of the third officer.

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **officer unidentified**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date